STANDARD OPERATING PROCEDURE			P-3840	
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 08/26/06	DATE REVISED **02/10/22**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE ROAD PATROL		RESOURCES		
SUBJECT VEHICLE CHECKPOINT		CROSS REFERENCE		

I. Purpose:

The purpose of this policy is to establish procedures for establishing and operating a vehicle checkpoint.

II. Policy:

It is the policy of the Sarpy County Sheriff's Office that vehicle checkpoints shall be handled in the least intrusive manner possible and in a systematic manner avoiding unfettered discretion. Generally, vehicles may be stopped by deputies for reasonable suspicion based on articulable facts that an occupant is committing a violation of law. Vehicle checkpoint stops not based on articulable suspicion shall be performed adhering to the following procedures. Vehicle checkpoints shall not be conducted on a random basis.

III. Procedure:

A. Establishing a Vehicle Checkpoint:

1. Vehicle checkpoints may be established by a command officer or supervisor and shall last a minimum of one (1) hour.

2. The command officer or supervisor establishing the checkpoint must not be involved in conducting the operations of the checkpoint.

3. The decision to establish a vehicle checkpoint shall be made at least two (2) hours in advance.

4. The checkpoint shall be conducted as ordered unless inclement weather arises and creates dangerous road conditions or deputies involved are reassigned due to an emergency.

5. The command officer or supervisor ordering the checkpoint should assign a supervisor or senior deputy to be in charge at the scene.

6. The checkpoint supervisor should conduct a briefing with all involved personnel prior to establishing the checkpoint.

7. The checkpoint supervisor shall obtain a report number for the overall checkpoint operation. Individual report numbers shall be obtained for each enforcement action (warning, citation, or arrest).

B. Checkpoint Procedures:

1. Vehicle checkpoints shall normally be conducted during daylight hours. Before ordering a vehicle checkpoint during nighttime hours, the command officer or supervisor shall ensure that the stops are conducted in an area with adequate lighting to ensure the safety of motorists and deputies.

2. The site of the vehicle checkpoint shall be chosen by the command officer or supervisor.

a) The site may be different for each checkpoint ordered or the same location may be used for each checkpoint.

b) The checkpoint location shall be highly visible to motorists coming from all directions to allow for sufficient time and room for vehicles to stop safely.

c) Checkpoints may be positioned at major intersections if practicable and visible in all directions.

d) The checkpoint site shall not be located where it would bear arbitrarily or oppressively on a particular class of motorist.

3. All vehicle checkpoints shall be operated by deputies in uniform using marked patrol units.

a) A sufficient number of deputies shall be assigned to the checkpoint to stop traffic from all directions. When a checkpoint is established on a multi-lane roadway, traffic may be stopped in only one direction.

b) Deputies shall wear a traffic vest when working at a vehicle checkpoint.

4. Notice shall be given regarding the checkpoint by posting a sign a sufficient distance away from the location. The sign shall apprise motorists of the

need to stop and to have their driver's license and vehicle registration ready for inspection. If the vehicle checkpoint is conducted during nighttime hours, the sign shall be illuminated, reflectorized or placed under adequate artificial light so that it is clearly visible to approaching motorists. If a sign is unavailable, safety cones, road flares/beacons, and patrol unit emergency lights may be used to indicate the location of the checkpoint and/or lane closings.

5. All vehicles shall be stopped and checked except under the following circumstances:

a) When the traffic flow is extremely heavy, vehicles may be slowed down sufficiently, without stopping, to allow a cursory examination for valid license plates.

b) When stopped vehicles reach a total of three (3) (per deputy) waiting in line, then later traffic may be waved through until all stopped vehicles are checked and gone, at which time the deputies shall again stop all vehicles.

c) In areas of heavy traffic flow, the command officer or supervisor ordering the checkpoint may order that only a predetermined portion of vehicles be stopped. For example, the command officer may instruct that every fifth or tenth vehicle be stopped. If this method is employed, deputies shall adhere to the procedures meticulously to avoid allegations of miscounting or random selection. Stopping all vehicles or waving excess vehicles through as provided above are preferred to the portion method.

6. The following items shall be checked when each vehicle is stopped:

a) Driver's license.
b) Vehicle registration.
c) Proof of insurance.
d) Headlights.
e) Turn signals.
f) Brakes.
g) Horn.
h) Windshield wipers.
i) Any other equipment required by law.
j) Driver's condition.

7. Exception to the above may be made in the following circumstances:

a) When traffic flow is extremely heavy, then a cursory examination of vehicle plates of all vehicles is sufficient.

b) When traffic flow is moderately heavy, then checking driver's licenses and vehicle registration of all vehicles is sufficient.

8. In order to minimize the intrusion, at no time during the routine inspection procedure shall a driver be required to exit his or her vehicle at the checkpoint. If violations of the law are detected or reasonably suspected, the procedure is no longer routine and the driver and/or passengers may be required to exit the vehicle.

9. Whenever it is necessary to issue a citation or warning or to conduct further investigation, the vehicle shall be removed from the lane of traffic so as not to cause a delay or obstruction in the flow of traffic.

10. Vehicle checkpoints may be conducted in cooperation with other law enforcement agencies following this or comparable policies.

11. Vehicle checkpoints may be conducted with the assistance of citizen volunteers. Volunteers shall only be utilized to obtain and record statistical information including the number of vehicles stopped at the check point and the time each vehicle was stopped. Volunteers shall never participate in any enforcement action.

C. **Documentation:** The senior deputy or his or her designee at each vehicle checkpoint shall complete a Vehicle Checkpoint Summary form. The form shall include the location, date, duration, procedure used, names of the deputies and volunteers involved and the command officer or supervisor ordering the checkpoint. The form shall also list the number of warnings, citations and arrests completed at the checkpoint. Any significant complaints and/or recommendations made by motorists shall also be noted. The form shall be returned to the command officer or supervisor ordering the checkpoint. The form shall then be forwarded to and retained by the Road Patrol Commander.